

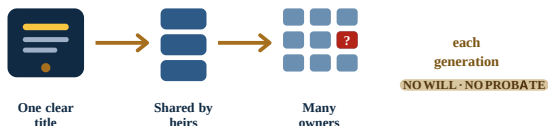


What Is Heirs' Property?

Heirs' property usually means family land that passed from one generation to another **without a clear title plan** placing ownership in the current owners' names.

Instead of one person holding clear title alone, several relatives may now own shared interests in the same property. Some relatives may live on the land; others may live elsewhere. Some heirs may be known; others may still need to be identified.

This does not automatically mean the family has lost the land. It means ownership may be **shared, unclear, or difficult to manage** until records are reviewed.



When land passes without a will or probate, ownership can divide further with each generation.

Common signs of heirs' property

- The deed still lists someone who died years ago.
- Family members disagree about who owns the land.
- No one knows whether probate was completed.
- A tax notice, buyer, lender, or court paper has created urgency.
- One person is being asked to sign for the whole family.



Where To Start

When you call for help, keep your explanation short and factual.

SAY SOMETHING LIKE

"Our family may be dealing with heirs' property in South Carolina. We need help understanding the deed, possible heirs, tax status, deadlines, and what no one should sign until we understand the situation better."

Questions to ask

- What documents should we gather first?
- Is this mainly a title, probate, tax, or partition issue?
- Are there deadlines we should treat as urgent?
- What should no one sign yet?
- What are the safest first steps?

South Carolina support

Center for Heirs' Property

Heirs' property & family-land support

(843) 745-7055

South Carolina Legal Services

Civil legal-aid intake

(888) 346-5592

Please verify these numbers before printing for distribution.

EDUCATIONAL INFORMATION ONLY · NOT LEGAL ADVICE

This brochure is educational information only. It is not legal advice and does not replace review by an attorney, legal aid office, court, agency, or qualified professional.



Protecting Family Land

A South Carolina Heirs' Property Guide

Family land can carry history, housing, identity, and future opportunity. When ownership becomes unclear, families may face pressure, confusion, missed notices, tax problems, or disagreement about who has authority to act.

This guide helps families slow down, gather facts, and prepare **before signing documents, selling land, borrowing money, or making major property decisions.**



Educational information only.
Not legal advice.



PAUSE BEFORE SIGNING

Before You Sign, Pause

Do not sign a deed, sale agreement, loan document, settlement paper, tax-sale document, partition document, or informal family agreement **just because someone says time is running out.**

🔍 Before signing, try to understand

- Who is listed on the deed?
- Who may have inherited an interest?
- Are property taxes current?
- Are there court dates, tax-sale deadlines, or notices?
- Has a lawyer, legal aid office, or heirs' property organization reviewed the situation?



A quick signature can create long-term consequences for the land and the family. It is better to pause, write down the facts, and ask for qualified guidance before acting.

🏠 FAMILY RULE

No one should sign alone until the family understands the records, the deadline, and the legal effect of the document.



GET ORGANIZED

Gather Records First

Start with facts that can be checked. You do not need everything before asking for help, but organized information makes the first conversation more productive.

📄 Property information

- Property address
- County
- Parcel number or tax map number
- Deed book and page, if known
- Most recent tax bill or tax notice

👨‍👩‍👧 Family information

- Name of the last known deed holder
- Whether that person has died
- Known children, grandchildren, spouses, or other possible heirs
- Who currently lives on or uses the property
- Who has received letters, offers, notices, or court papers



📄 Important documents

- Deeds · Wills · Probate or estate papers
- Death certificates · Tax notices
- Surveys or plats
- Letters from buyers, lenders, attorneys, or county offices



PAY ATTENTION

Warning Signs That Need Attention

Problems often become serious when families wait too long, rely only on memory, or respond to pressure without checking records. Move carefully if you see any of these:

- ▲ A tax-sale notice, delinquent tax bill, court paper, or hearing date has arrived.
- ▲ A buyer, investor, lender, developer, or relative wants a quick signature.
- ▲ The deed lists someone who has passed away.
- ▲ Family members disagree about who can sell, lease, repair, live on, or manage the property.
- ▲ No one knows who is receiving tax notices.
- ▲ One branch of the family lives on the land, but other relatives may also have ownership interests.
- ▲ Someone says "this is simple," but no one has reviewed the deed, probate history, tax status, and possible heirs.



🕒 LOWER THE RISK

Keep records together, write down names and dates, confirm deadlines, and speak with qualified help before making major decisions.